

23SMCV01484 23SMCV01484

County: los-angeles

Division: Civil Law and Motion

Department: 205

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Case Number: 23SMCV01484 Hearing Date: September 9, 2026 Dept: 205

Superior Court of California

County of Los Angeles – West District

Beverly Hills Courthouse / Department 205

ARDEN FLETCHER,

Plaintiff,

v.

PARIA HASSOURI, M.D., et al.,

Defendants.

Case No.: 23SMCV01484

Hearing Date: September 9, 2026

[TENTATIVE] order RE:

defendant robert bernstein,

m.d.'s motion to continue trial

BACKGROUND

This is a medical malpractice case. On August 18, 2017, Plaintiff Arden Fletcher, who was then 2 years old, was seen for a well-child visit by her pediatrician, Defendant Dr. Paria Hassouri. At that visit, Plaintiff's parents expressed concern regarding a curvature in Plaintiff's back which was also noted by her school. Plaintiff's parents also expressed concern that she "waddles".

Later, on May 23, 2018, Plaintiff was seen by Dr. Hassouri for another well child visit. Plaintiff's parents again expressed concern about the curvature in Plaintiff's back. Dr. Hassouri referred Plaintiff to Defendant Dr. Robert Bernstein, a pediatric orthopedist.

Plaintiff alleges that both doctors were negligent in failing to obtain radiologic imaging and as a result, they negligently failed to diagnose and treat Plaintiff's condition - bilateral hip dysplasia. As a result, Plaintiff alleges she has suffered severe, serious, and permanent injuries. Her complaint also seeks damages relating to a loss of earning capacity in the future as well as past and future medical expenses.

This hearing is on Dr. Bernstein's motion to continue the trial date from September 14, 2026 to November 16, 2026. Dr. Bernstein requests the approximately two-month continuance because of the unavailability of trial counsel and a retained expert. Dr. Bernstein's expert, Dr. Vidyadhar Upasani, will be out of the country from September 10, 2026 through October 10, 2026. Trial counsel (Michael Gonzalez) is scheduled for a preferential trial in another case, originally set for August 19, 2026 but recently continued to September 9, 2026 which is expected to last 15-20 days.

LEGAL STANDARD

Rule 3.1335(a) states that "[a] party seeking to advance, specially set, or reset a case for trial must make this request by noticed motion or ex parte application under the rules in chapter 4 of this division." Rule 3.1335(b) also says that "[t]he request may be granted only upon an affirmative showing by the moving party of good cause based on a declaration served and filed with the motion or application."

DISCUSSION

There have been several continuances in this case. Trial was originally scheduled for July 21, 2025. The parties then stipulated to continue trial to May 18, 2026. On May 18, the parties again stipulated to a further continuance of trial to September 14, 2026.

Dr. Bernstein's counsel participated in the conference where trial was continued to September 14, 2026. There is no explanation as to what has changed between the May 18 status conference and the filing of the motion to continue, such that Dr. Bernstein's retained expert suddenly became unavailable.

As to counsel's unavailability, trial was set in this case on May 18, 2026. The trial date in the other case (Case No. 25STCV27943) was set on December 18, 2025. Counsel therefore should have known there would be a conflict and not stipulate to a trial date of September 14, 2026, at the May 18 hearing.

Notwithstanding, trial in the other case has now been rescheduled to September 9, 2026. It is estimated to last 15-20 days which means that it will run into the September 14, 2026 trial date set for this case. This was done by the Court in Case No. 25STCV27943 on August 19, 2026, which was after the trial setting conference in this case, and therefore, is a new change that warrants a continuance.

CONCLUSION

Based on the foregoing, the Court GRANTS Defendant Robert Bernstein's motion to continue trial. Trial is continued to November 16, 2026 at 8:30 a.m. Counsel for both parties are cautioned not to schedule vacation or other commitments that would conflict with the November 16 trial date. The parties must also ensure that their experts or other persons they deem necessary for the trial do not schedule conflicting commitments.

IT IS SO ORDERED.

DATED: September 9, 2026 _____

Edward B. Moreton, Jr.

Judge of the Superior Court